

The Review

Volume I, No. 12
December, 1911

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VOLUME I, No. 12.

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THE REVIEW

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LABOR'S ATTITUDE TOWARD PRISONERS' LABOR

BY JOHN J. SONSTEBY

[This address, which we print in large part, was read by Mr. Sonsteby at the recent Rhode Island state conference of charities and correction. It seems an excellent statement from the standpoint of organized labor.

The Review will be glad to print authoritative statements from other persons holding other views on the prison labor problem.—
EDITOR.]

In speaking to the subject of labor's attitude toward convict labor, I speak from the standpoint of organized union labor, and through it to the free labor of our country.

I speak particularly for the United Garment Workers of America, a union whose membership is largely composed of women and girls, and which is subjected to more competition with convict labor than almost any other union or trade.

Organized labor has taken a positive stand and has an attitude toward convict labor. That attitude is practically no different from the attitude of other citizens who have given the subject careful thought and who are not financially interested, directly or indirectly, in the labor of convicts.

I have found whenever labor men, manufacturers, sociologists and other financially disinterested people have discussed the question there has been an almost unanimity of opinion.

The attitude of free labor toward convict labor finds expression only through the means afforded by the labor unions. Unorganized free labor is what the name implies, and has no authorized person to speak for it.

Organized labor's attitude toward convict labor is, therefore, the only one capable of being crystalized and expressed.

Free labor is unalterably opposed to convict labor as it is commonly understood to-day, viz.: The competition of the products of convict labor with that of free labor on the open market. Free labor favors prison labor for the purpose of keeping prisoners employed, training them for their duties as citizens when they are released, and making products for the state and the state institutions.

Speaking before a subcommittee of the committee on labor, in the house of representatives, in March, 1910, Mr. Thomas F. Tracey, representing the American federation of labor, said, in part: "The labor organizations of this country, as typified by the American federation of labor, have not, are not, and should never help in the advocacy of anything that would put prisoners in idleness. We want those who are the outcasts of society, and who are confined in prisons to be allowed to do work—such work as will be beneficial to them; but we do not believe that, when these men are confined in prisons, instead of their labor being put in the direction of either grinding out dividends for stockholders of concerns of this kind (prison contractors), or making profits for the state, their efforts should be rather in the direction of educating them and reforming them to lead better lives."

The foregoing sentiment represents the altruistic attitude of the American labor movement.

What reason is there for an expression of labor's attitude? People who have a selfish purpose to serve have directly and by innuendo charged labor unions with selfishly endeavoring to keep all prisoners in idleness, so that no products from convict labor would be manufactured. Organized labor has never been guilty of such an endeavor, and its attitude has been intentionally and insisently misrepresented by those who knew better.

That the inmates of penal and reformatory institutions must have employment if the object of their confinement is to be attained, is admitted by all. That this employment will, in some degree, compete with free labor, is also true. That at the present time this employment of convict labor does compete with free labor, and compete in a demoralizing way with it, is recognized by all who are informed. People who do not come in contact with prison labor or the products of prison labor, do not realize what the

competition of the convict labor means. Organized labor believes that the employment of convict labor should be so diversified that the burden will be equally distributed among all free labor, and reduced to such a minimum that the members of no trade or occupation can justly complain.

The two dominant ideas in prison management heretofore have been simply retribution and economy. The possibility of reforming convicts who are within prison walls—reforming them by useful, educative labor—is a comparatively new idea, and not accepted by all those in charge of convicts. Organized labor believes in reforming the convicts and returning them as soon as possible to society, mentally and morally sound and willing and able to take their places in the rank of wage earners. It costs money to train morals or to do educational or reformatory work. It takes effort, time, money, and interest to diversify employment among convicts so as to render such employment educative and beneficial to the convicts, and, at the same time, not unfair to free labor.

The desire on the part of many managers and prison officials to make penal and reformatory institutions self supporting is one of the causes for their failure up to the present time to arrive at a successful solution of the convict labor question. Another reason for the failure to successfully solve the question has been the fast disappearing but still remaining spoils system in politics, which gives to the local merchants contracts to supply the needs of the state and state institutions. The usual form of prison labor is not reformative.

The problems to which all right thinking people should apply themselves is to adopt or evolve some system of employment that is fair to free labor, and then endeavor to have such a system uniform throughout the United States. Until some uniform system of disposing of the products of convicts is adopted, there should be a federal law enacted providing that each state shall have the right to regulate the sale of prison-made goods within its own borders. Such a bill, has been pending for a number of years in the congress of the United States. Each state should dispose of, within its own borders, the products of its own penal institutions.

The systems in vogue in our penal institutions at the present time are commonly known as:

1. Contract labor (indoors).
2. Contract labor (outdoors).
3. Piece-price plan.
4. Lease system (outdoors).
5. State account: products sold on open market.
6. State account: for state use.

Of these, the contract labor and lease systems have been universally condemned. At the present time, each state has its own system, or lack of system of handling the convict labor question. Each state endeavors to avoid competition with free labor in its own particular state. To do this, many contracts provide that the product shall not be sold within the state where it is made, and as a result the free labor in all the states is subject to about the same competition because of this interstate commerce in prison-made goods.

The farming out and disposing of the labor of convicts by contracts to private persons or corporations, is the most pernicious form of competition to which free labor is subjected. The piece-price plan and state-account, when the product is disposed of on the open market, either to favored persons or corporations, or without regard to market conditions or prevailing market price, is not much better. All of these systems except the state account plan, where the product is used by the state or state institutions, tend toward the concentrating of the productions into a few trades. The concentrating of prison-made goods into a few trades is bitterly opposed by free labor. Such products are sold in the open market at less than the market prices, and this unfair, cruel competition drives free manufacturers out of business, free workmen out of employment, and puts a penalty on the wage-earner who keeps out of prison.

The old systems of labor have been tried, have been weighed in the balance and found wanting. The story of graft and corruption of prison officials who have had anything to do with contracts for prison labor under any system, except the state account plan, where the products are used by the state, or in the state institutions, has aroused almost every state in our Union. The reports of state investigating committees and of committees appointed by civic organizations, are such as to be almost unbelievable. The abuses, the atrocities, the crimes that are committed in the use of convict

labor, have brought down the condemnation of all right thinking citizens, and created a demand for a system of labor that will not be subject to those conditions.

In the movement for better conditions, organized labor takes a stand in the front rank. Of all of the systems of work that have been used in the various penal institutions the one most successful is the state account system by which the labor of the convicts is used for the state, and the products for the state institutions. This system eliminates nearly all incentive to bribery of prison officials, the exploitation of convict labor and the opposition to the parole laws. Under it the whole people get whatever benefits may be derived from the labor of the prisoners of the state.

Organized labor is on record as favoring this system. When the prison officials recognize that the profits of the prisoners' labor belongs to the state, that the state is more interested in reforming the prisoner than making a profit on him, such officials thereupon become much better officials for the state as a whole.

The efforts of the prison officials are thereafter directed toward curing our morally sick men and women, and new and various methods are tried. In this connection I might mention the experiment as reported in the press of September 30, of this year, of Ray Baker, warden of the Nevada state penitentiary, who, in company with three unarmed assistants, took fifty-two convicts, many of them life termers, to attend a theatrical performance. Every convict was upon honor, and not one violated his word.

How many of our prison officials will hold up their hands in holy horror at such unconventional conduct on the part of the warden?

Slavery and involuntary servitude except as a punishment for crime is forbidden in the United States by the thirteenth amendment to the constitution. It is by this amendment that the state has any right in the labor of convicts. That right, I think, should only exist when the convict labors for the state or its institutions. Where the state through its courts has no power, as punishment for crime, to sentence a convict to labor for private persons, it should have no right to do so directly by contracts with private persons providing for the labor or the product of the labor of the convicts.

Under the plan organized labor favors, the convicts are always under the control of the state and its authorized officials. They may be shifted from one form of work to another as the needs of the state or the health and training of the convicts require.

Every convict who has no trade and is capable of learning one should be taught one most suitable for him. Not in a haphazard, spasmodic way, but in a way that will make him an efficient, intelligent mechanic, retaining skill, and able to follow the trade when he is released. In the arrangement of employment for the prisoners the state should endeavor to supply itself with everything necessary in its various institutions. Convicts should be employed as nearly as possible at the work they are accustomed to, especially if they are skilled mechanics, in order that they should not lose their skill. A large proportion of the convicts are men accustomed to outdoor life, either on farms or other outdoor labor; many of them are convicted of crimes in no way violent or due to vicious or violent dispositions.

To confine men of this kind in cells and compel them to work in shops is to endanger their health, break them down physically, and return them to society not only morally sick, but also physically and mentally sick.

The death rate from tuberculosis is much higher in prisons than outside. In some prisons the conditions are such that a sentence of five years or more means almost invariably another case of tuberculosis and death.

The danger to the public from the clothing and other products made by these tuberculosis infected convicts is so great that if the public only knew the facts, prompt remedial legislation would be forced. The states are spending millions of dollars annually to eliminate or reduce the great "white plague," yet at the same time they are maintaining also at public expense some of the worst causes. These convicts are returned to society about every five years, and the product of their labor is in every state in the Union. Is it not better and cheaper to prevent tuberculosis by wiping out one of its most prolific causes than to let it continue to spread pain, misery and death, among our people who have committed no crime?

As large an amount of outdoor work as possible should be provided. A large farm should be operated, on which not only necessary foodstuffs be raised, but a flour mill for the grinding of flour and all other necessary

plants for the turning of the different raw products into the finished articles needed in the various institutions. The making of roads is needed in almost every state, and is an ideal occupation for convicts. After providing for the needs of the state and state institutions the surplus labor could be used in this way. Only those convicts should be put to work on the roads who have been convicted of minor offenses, and can be trusted without ball and chain and armed guards. In this day of speedy communications by telegraph, telephone and wireless, the old restraints are very much less needed.

At the present time none of the prisons of the country are self-supporting. All of these penal institutions are a burden on taxpayers of this country. All free workmen are taxpayers of the state, either directly or indirectly. It is unfair that any one part of the taxpayers should be discriminated against by the state. Concentrating the labor of prisoners in an institution into a few trades forces the free labor in those trades to enter into competition with the state. The selling of convict labor products on the open market in competition with free labor, at any price, throws free taxpayers, into ruthless competition with the state. Using convict labor to furnish the needs of the state and state institutions not only removes the state from the market for free labor, but also permits free manufacturers to meet each other in fair, free competition. They are then all equal as to labor costs, no products of slave labor being thrown at any price on the open market.

Organized labor asks no special privileges in this matter, but wants simply that each free laborer be treated the same as every other free man; that he pay only his just share of the tax necessary to the maintenance of the state and its penal institutions; that he be subjected to only his fair share of the competition incident to the manufacture of any product within the penal institutions; that a system of employment be inaugurated and maintained in the penal institutions of the country that will educate and reform the convicts; that the products of all convict labor should be used entirely by the state and institutions of the state, where the convict is incarcerated; that the labor of the convicts should be so diversified that the burden will fall as equally as possible on all free labor within the state; that the exploitation of convicts or their labor or the products of their labor for the benefit of individuals be not permitted in any form; that a rate of compensation be allowed for the product of convicts based upon the labor costs outside prisons, and that, after deducting from the earnings of the convicts the cost

of maintenance and other proper and necessary costs, the balance should be used either for the dependent family of the convict, the reimbursement of those who have been injured or suffered through the crime, of the convict, or kept for the use of the convict and given to him when he is released; that when a convict is discharged or paroled, a place be provided for his care until he is able to secure employment in the line he has been taught, and means provided to secure him employment.

In all movements for the betterment of prisoners and the welfare of prisoners, organized labor has assisted. Every law enacted in the United States, changing and bettering prison conditions has either been initiated or strongly supported by the labor unions. The improvement of sanitary conditions in the prisons; the providing of dining rooms are all improvements largely due to the efforts made by organized labor.

The adoption of the foregoing plans will make of the penal institutions of our country industrial institutions for the saving of morally sick men and women committed to them. The inmates of such institutions will return to the body politic with a corrected perspective due to a training under a state government that desires to reform as well as correct. They will again take their places in society not only willing, but able to do their share of the world's work. This is the attitude of organized labor toward convict labor.

TURNING BEGGARS INTO WORKERS

BY O. F. LEWIS, GENERAL SECRETARY

PRISON ASSOCIATION OF NEW YORK

[In the Summer of 1911, Mr. Lewis traveled through Belgium, Holland, Germany, England and Scotland, studying European methods of dealing with delinquents, and especially the beggar colonies of Central Europe. The following article is a part of one chapter of Mr. Lewis's report to the Prison Association of New York, which will be presented to the Legislature in 1912. The report has special significance because the state of New York is to build a compulsory farm colony for habitual tramps and vagrants.]

Foreign countries, notably Belgium, Holland and Germany, have had lengthy and varied experience with the problem of vagabondage and mendicancy. Indeed in Central Europe the vagrancy problem is not alone a generation old, but a century old. Napoleon devoted some of his genius to the problem of the suppression of vagabondage. When the Dutch possessed Belgium as well as Holland, Dutch benevolent societies sought the reformation and rehabilitation of the vagabond. A half century ago Holland was segregating over one thousand vagabonds and beggars on the bleak heath in the north of Holland near the Zuyder Zee and already turning the arid plain into a blooming oasis. Belgium was creating fifty years ago local beggar colonies, and recognizing that vagrancy is one of the great social dangers of a nation, a danger increasing inevitably with the progress of civilization. Germany was thirty years ago this year establishing its first voluntary labor colony at Bielefeld in Central Prussia. Pastor von Bodelschwingh, the great organizer of philanthropic institutions for defectives of all kinds, founded with deep religious conviction his first farm colony for the "brothers of the highway." Compulsory workhouses, semi-penal in nature, have come to number about thirty in the kingdom of Prussia, containing not thieves, not cases of assault, not robbers, not other criminals of greater or less degree, but solely vagrants, mendicants, and that

despicable class of human beings, the souteneurs, who traffic in human flesh.

Today the accumulated experience of generations can be found in the records and in the methods of administration of Belgian beggar colonies, Dutch vagrancy colonies, German free labor colonies and German compulsory workhouses. It is unthinkable that the United States, ever ready in commercial and industrial lines to profit not only by the mistakes but by the successes of other nations, will be blind to the wealth of experience that European countries can offer us.

With the purpose of rendering a slight contribution to American information on this subject, a considerable part of my last summer's tour in Belgium, Holland, Germany, England and Scotland, as general secretary of the prison association of New York, was devoted to the first-hand study of the administration of institutions for vagrants and mendicants and the study also of their history and of the laws under which at various times they have been operated. In several chapters following this introductory chapter I present a somewhat careful study of Merxplas the world-famous beggar colony of Belgium; of Veenhuizen, the less known but remarkably interesting vagrancy colony of Holland; of the free labor colonies and the compulsory workhouses of Prussia and Germany; and of conditions and problems of vagrancy in England and Scotland.

Several general observations may well precede the special chapters.

1. In all four of the countries above mentioned (Belgium, Holland, England and Scotland) the correctional institutions in which vagrants and mendicants are confined are under the same governing body as that which governs the prisons. In Belgium and Holland, the department of justice controls the beggar colonies and the vagrancy colonies. In England and Scotland the boards of prison commissioners are the governing bodies not only for the convict prisons in which the more serious offenders are imprisoned, but also the local prisons, which are the places of imprisonment of beggars and mendicants. In Prussia, the Arbeitshäuser (compulsory workhouses) are under provincial, not royal control. In short, in Prussia compulsory workhouses are county institutions, or in the case of Berlin municipal institutions, rather than state institutions. We find, herefore, in Holland and Belgium special institutions for the imprisonment of vagrants

and mendicants controlled by the state, in Prussia special institutions for the imprisonment of vagrants and mendicants controlled by the provinces corresponding in general to our American counties; we find in England and Scotland local prisons, not specially designated for vagrants and mendicants, controlled by the state through boards of prison commissioners. While in Prussia the American student might perhaps expect under provincial (county) management a condition analogous to the indifferent if not highly neglectful management of correctional institutions so familiar to American students, where politics rule in county affairs, the fact is that the Prussian county compulsory workhouses are managed with that German thoroughness, efficiency, and integrity which makes these county institutions, so far as my observations went, fully comparable with the management of the state prisons and penitentiaries.

The important point is that the state, or in Prussia the county, can organize and operate its institutions for vagrants and mendicants independent of petty local prejudices or ignorance, and regardless of pernicious political influences. If the state concludes to institute in its labor colonies or other institutions an innovation or a method well tested elsewhere, it has the power. As with us in New York, state institutions are in general far better managed than the local institutions, so in European countries I visited the principle of state control and operation of all correctional institutions is held to be fundamentally correct. If in Prussia the local institutions were poorly managed, undoubtedly the state would seek to step in and take over the management of these institutions. Briefly then, it can be stated that state control and operation of institutions for the treatment of vagrants and tramps is a principle justified by European experience.

2. In all European countries visited, I found a most admirable absence of political influence. Repeatedly it was impressed upon me by high authorities that politics play no deleterious part in the appointments of officials, high or low, in the course of justice. To be sure each country has its political parties, but the integrity of men in office is, I was informed, rarely if ever questioned. Positions such as secretary-general of the department of justice, which office carries with it in Holland and Belgium the administration of prisons and other correctional institutions, or that of the head of the Prussian prison system, or that of chairman of the prison commissioners of England or Scotland is practically a position of life

tenure, during good behavior. Governors and directors of prisons, and subordinate officials as well, hold office without fear of removal for any cause except dereliction of duty, incompetency or immorality. Frequently indeed was the plea made to me: "Urge above all things the removal of American prisons from politics." In short, the type of prison employee from governor down to the list of attendants is, from the standard of integrity, admirable in all countries I visited. That such conditions make for good service through the elimination of the worry as to tenure and through the elimination of voluntary or compulsory dishonesty under the pressure of political influences is self-evident.

3. On the continent vagrants and mendicants as found in the colonies and in the compulsory workhouses are very noticeably different from our typical tramp or vagrant, in that the European tramp in prison is much older than our typical youthful or young adult wanderer. In Merxplas and in Veenhuizen the young tramp was a rarity. Perhaps ninety-five per cent. of the population of the colonies was at least forty-five years old. The population of the several compulsory workhouses visited in Prussia averaged somewhat younger, but nevertheless was considerably older than the average age of our tramp army.

Added to this was the fact, everywhere observable, that the great majority of the tramps and vagrants possessed a trade. They could accomplish at least moderate results with their hands and they seemed to wish to do satisfactory work to a reasonable extent. As illustrations I cite the tailoring department, the shoe making department and the trunk department at Merxplas, and the weaving and the carpentry work at Veenhuizen. The great majority of the vagrants and the beggars who are segregated in Holland, Belgium and Germany are men who know how to do things with their hands and heads sufficiently well to earn a living, but who are either physically or mentally so under par that they cannot work hard enough, or will not save money enough, to render them permanently self supporting. Hence they gravitate, generally without marked criminal instincts or intentions, into vagabondage or vagrancy, are arrested, and sent or returned to the beggar colony. In these colonies, under a control which they are not adverse to, and with a shifting of responsibility which they are glad of, they produce a moderate amount of product with a moderate amount of pleasure in their work. The directors of the colonies and other representatives of the

departments of justice claim that the men are happier in the colonies and are better off by far than they would be outside.

4. The beggar colonies and the compulsory workhouses are in practically no sense reformatories. The importance of this fact cannot be over-emphasized. There seems to be a rather general belief in the United States that farm colonies for tramps and vagrants will be important reformatory agencies. European experience is directly contrary to this belief. European sociologists, directors of colonies, prison physicians, or prison commissioners without exception stated emphatically to me that the percentage of reformation (by which is meant fairly permanent rehabilitation) is exceedingly small from the colonies and the compulsory workhouses. The history of beggar colonies in Belgium and Holland shows that those colonies began with large hopes of reformation and that in the course of years and generations it has become thoroughly manifest that the tramp and vagrant is what he is through a lack of stamina, will, physique or brain, whatever we may call it in the individual instance, without which it is impossible for him to lead a normal and self-supporting existence. Just as we in the United States are coming to see that the feeble-minded criminal and non-criminal are chronically deficient and that feeble-mindedness means an absence of a quality which cannot be replaced or cured, so with vagrancy and its twin sister mendicancy, European conclusions are emphatic that vagrancy and mendicancy, especially in the more advanced stages, must be regarded as manifestations of a social inefficiency and incompetency which require segregation and custodial care, in most instances permanently or for long periods.

If ever a labor colony was organized and conducted with the earnest purpose of reformation of a large proportion of its inmates, the voluntary labor colony at Bielefeld was such a one. Yet after thirty years the parent colony, known throughout the civilized world and quoted more than any other of its kind, bears this testimony through its secretary, given to me on August 6, 1911: "This colony is not successful in reforming many men or in making them permanently self supporting. This colony is successful in furnishing, as do the score of other colonies in Germany, a haven to the "brothers of the highway" who are stranded and unable to live honestly without our help. This colony is a colony not for the permanent rehabilitation of its inmates, but for the temporary succor of those who seek

our help. A large proportion of our brothers come time and again to see us. They think themselves strong enough to leave us, but they come back. If they do not come to us, they go to other colonies from time to time. Many of our colonists are discharged prisoners. Many of them are at times in the voluntary labor colonies, at times in the compulsory workhouses. We have many instances of successful reformation and rehabilitation, but the voluntary labor colony as represented by Bielefeld colony has not solved the problem of the elimination of the tramp.”

On the other hand, opinion is general that the compulsory labor colony as represented by the beggar colony or compulsory workhouse is of great value as a deterrent and as a custodial institution. None of the countries would, I believe, give up the colony idea, although statements were frequently made that the colony should be smaller, classifications more developed and that the efforts to influence for the better the individual colonists should be more frequent and varied. At Merxplas the secretary general of the Belgian department of justice, the administrative head of the Belgian system, stated to me that Belgium is planning numerous smaller colonies to take the place of Merxplas. The feeling is pronounced in Belgium, Holland and Germany that the most that can be achieved by any present method of dealing with vagrants is the gradual reduction of the number of vagrants, the deterrence of many would-be vagrants, and the segregation of a large number of inevitable vagrants and beggars where they may do the least harm to society at a minimum expense to society.

Although vagrants in the colonies and the workhouses manifest in general a restlessness and a frequent desire for liberty, they are themselves aware that their condition in general is better in the colonies than outside. Indeed, at Merxplas, and particularly at Veenhuizen the American visitor finds a beauty of landscape and a condition of intensive development of garden and meadow, grove and forest, canal and highway that renders both institutions scenically beautiful.

The Prussian compulsory workhouse, Brauweiler, is most attractively located in a renovated cloister, the original buildings of which are 1,000 years old. The spacious rooms, the impressive arched corridors, the striking central courts of the cloister as well as the well preserved cloister church dating back to the tenth century, are all impressive and even awe-inspiring. The workhouse prisoners eat in cloistered passages where 500 years ago the

monks had their daily meals. The prisoners worship in a church used by royalty and nobles at the time of the crusades. Even a spreading mulberry tree in one of the court yards, furnishing shade from time to time for some of the inmates, was planted a thousand years ago by the founders of the monastery. In Rummelsburg, adjacent to Berlin, the walled workhouse embraces ample grounds, a spacious garden and attractive buildings. At Veenhuizen in Holland, the heath has been made to blossom like the rose and no finer views of Holland scenery can be found than those in the midst of the 7,000 acres embraced by the colony.

5. Not only do the vagrants live under such surroundings, but in nearly all instances they and their predecessors have thus created their surroundings. Merxplas and Veenhuizen were as the rest of the heath when they were founded. Today the cold north wind, blowing down from the North Sea, is checked before striking the grounds and buildings of Veenhuizen by forests planted by the colonists a generation or more ago. The large dormitories, accommodating 500 men each, in which the Merxplas colonists sleep, were built by colonists most of whom have passed away. The arable farm land of Merxplas, which now supplies the bulk of the vegetable products needed by the colony, was made fertile by gangs of colonists in previous years who rooted out the weeds and heather and utilized the street sweepings of Antwerp in a mixture of top soil. Shops, churches, officers' quarters, farm buildings, farm implements and wagons have been built by the colonists in these several institutions. Stock has been bred and raised at the colony and to the maximum extent the colonists are rendered self supporting. In addition, industries are maintained to the maximum extent possible with hand and foot power, it being still a literal principle in the colonies and in the workhouses that by the sweat of his brow shall the colonist earn his bread. Oftentimes the rigor of the work impressed me unpleasantly, particularly the weaving by hand and foot power at Merxplas and at Veenhuizen, which was carried on by many aged men who in our country would seem candidates for an idle almshouse life.

In short, one of the important lessons taught by the colonies and the workhouses is that there is in tramps and vagrants (at least in Central Europe) a very large amount of latent productivity, which directed normally and under conditions offering the least resistance can be made financially profitable to the state.

6. European vagrants and beggars seem seldom malicious and vicious. The colonies in Belgium and Holland are not regarded as penal institutions, and in Prussia as only semi-penal. Discipline is comparatively easy, the proportion of infractions of rules varying largely in proportion to the tact, discretion and humanity of the director and of his assistants. Throughout the Merxplas colony the words docility and disobedience kept recurring to my mind. In Merxplas and Veenhuizen the men come and go without the restriction of walls. Escape is easy and the possibilities are often taken advantage of. As noted in the special chapters that follow, little is done to follow up this escape so long as the fugitives show a disposition to re-establish themselves in industrial life. "Peace and good will" seem to be mottoes in the colonies. In the Merxplas colony one finds many mottos printed in French and Flemish admonishing the colonists to forsake the vices and cleave to the virtues. Other religious influences, however, are not very noticeable. By comparison, the atmosphere of Bielefeld, a voluntary labor colony of Prussia, seems permeated with devoutness and outward religious observance.

GOVERNOR WEST'S PRISON POLICY

BY REV. O. A. STILLMAN

[The prison policies of several governors have lately attracted attention, notably those of Governor West of Oregon, Schafroth of Colorado, Foss of Massachusetts and Gilchrist of Florida. The following article, written by one closely in touch with Oregon prison conditions and published in "Lend a Hand," is a useful outline of Governor West's work in Oregon for prison betterment.]

There has been much comment in the papers and magazines lately regarding Governor West's prison policy; some of which has been written in a friendly spirit, some of it in a spirit of criticism, and some of it, while undoubtedly written in a friendly spirit, has, because of insufficient information, had rather the result of putting the governor and his policies in a false light.

Some of these writers, probably with the best intentions, have given the impression that Governor West's policy flashed upon the unmitigated horrors of the Oregon state penitentiary like a flash of lightning out of a clear sky, without any preparation or previous warning. If this had been true, it would probably have resulted only in disaster, as far as the policy is concerned, and in making the governor appear rash and inconsiderate, if not ridiculous.

Nothing could be further from the truth. Governor West knew perfectly well what he was doing, and, so far as I have been able to judge, he has been eminently wise in his reforms. He has not entered into this work without having given a great deal of study to its problems, and he seems to have a large fund of information regarding the conditions he is trying to meet.

The fact is that the change in the prison policy began in the spring of 1903. At that time conditions were just about as bad as they have been pictured. The generosity of the people of the state of Oregon did not go to

the length of furnishing the prisoners in the penitentiary even such common necessities as socks and underclothing. Flogging was common, and the hose, no less terrible as a punishment than the whip, was considered a necessity in the government of the penitentiary. There was no common dining room, and the men lived, slept, cooked and ate in their cells. An exceedingly limited and coarse fare was provided by the state, but the prisoner who had money could send out and purchase provisions, which he could cook in his cell over a small oil stove. The prisoner who had no money had to content himself with dry bread and bean soup flavored with the smell from the cooking of his more fortunate neighbor. Sanitary conditions were shockingly bad, and at one time resulted in a large number of cases of typhoid fever. The spirit of the inmates was exceedingly dangerous, as witnessed by the fact that the officers of the prison considered it unsafe to go among the men without a guard. The Tracy-Merrill outbreak was a fair sample of the spirit of the institution at that time.

On April 1, 1903, C. W. James as superintendent and Frank C. Curtis as warden, appointees of Governor George E. Chamberlain, took charge of affairs at the prison. They proceeded cautiously, but with a marked advance in their treatment of the prisoners.

The striped clothing formerly worn by the prisoners was abolished, except as a mark of disgrace for infraction of the prison rules. Flogging was abolished by act of the legislature. Necessary underclothing was furnished the prisoners. A dining room was built and cooking in the cells was stopped. The sanitary conditions were improved. An orchestra and band were organized among the prisoners. A parole officer was provided, whose duties were practically that of chaplain. A prisoners' aid society was organized, which looked after the welfare of the prisoners, both before and after release. A printing office was donated by the prisoner's aid society, and the publication of a small monthly paper by the prisoners and in their interest was begun. This paper was known as "Lend a Hand," and has now a circulation that reaches across the continent. An innovation worthy of special mention was the permission of baseball games between clubs of the prisoners, which the prisoners were not only permitted to witness, but they were allowed to cheer and "root" to their heart's content. These and various other reforms which were inaugurated during the eight years previous to

Governor West's inauguration laid the foundation for the success of his policies.

Great as had been the changes before the term of Governor West began, they had been spread out over a period of eight years, and while awakening considerable opposition, had not attracted much notice. When Governor West came into office, notwithstanding what had already been accomplished, he found plenty of room for improvement, and he went at it in characteristic fashion. His "honor system" was put into effect and with surprising success, if one did not know of the care with which the cases were selected to whom it should be applied. The indeterminate sentence law was passed by the last legislature, and provision was made for a parole law and a parole board to have oversight of its administration. Various advanced methods of treatment of the prisoners were adopted, prominent among which were plans for giving the prisoners a portion of their earnings. The contract system of employing the prisoners has been practically abolished, or will be as soon as the work now begun is completed.

A new auditorium has been built entirely by convict labor. A weekly moving picture entertainment is furnished the prisoners and various schemes for the improvement of their condition have been put into effect, all with the result that the burden of expense has been lightened, and the inmates have come to feel more as if they were still considered human beings. The details of these improvements are too well known to need repetition here. It but remains for me to say that, with the unusual opportunities accorded me as manager of the printing office and "Lend a Hand" to observe the effect of his policies in the working out, I am impressed not only with the spirit of Governor West, and the scope of the plans which he proposes to put into effect, but even more with the wisdom he has shown in the reforms he has undertaken.

The fundamental principle of Governor West's prison policy appears to be that "A man's a man for a' that." While he believes that prison sentences are primarily for the protection of society, he also apparently believes that the protection of society will be best accomplished by helping the prisoner regain his manhood and self-respect, and that is the keynote of his policy. I asked an "old-timer" the other day to tell me how the spirit of the inmates of the prison now compared with that of the time before these reforms

began. He said: “There is no comparison; they are as different as heaven and hell.”

THE WAYWARD GIRL AND THE BINET TEST

BY HENRY H. GODDARD, PH. D., AND HELEN F. HILL

[This is an abstract of a paper published in "The Training School" for June, 1911. Dr. Goddard is no theorist; his conclusions always deserve very serious thought.]

It was with a good deal of interest that we accepted the offer of a prominent probation officer to examine some fifty of her girls who had been in the girls' reformatory, but were now out on probation.

Some little experience with similar groups had led us to feel confident that quite a percentage of these girls would be found to be distinctly feeble-minded, but we were not prepared for the results that we did find. In all, fifty-six girls were examined, ranging in age from fourteen to twenty, the average probably being eighteen and a half. The usual misgivings were had on the part of those who knew the girls, as to the effect of asking them to do the test, but as experience always shows, there was not the slightest difficulty. Indeed, the girls took hold of the tests with great earnestness and enjoyment, and, after they were through, were very proud of their achievements.

The results are summarized as follows: One of them tested eight years, that is, shows the mentality of a normal girl of eight years of age; twelve tested nine years; fourteen tested ten years; fourteen, eleven years; eleven, twelve years, and four did the tests for thirteen. As the tests for thirteen have been demonstrated to be much more difficult than that age would indicate, *we may say that four out of the fifty-six are not feeble-minded, as we usually define feeble-mindedness. The rest are clearly mental defectives,* and could be made, or could have been made, had they been taken early enough, happy and useful in an institution for feeble-minded. As it is, they must always be a trouble, must always be a disappointment, incapable of bearing the responsibilities that have been put upon them, and, what is

worse, they will be, as many of them already are, mothers of more feeble-minded and deficient persons.

To appreciate the full force of this, one should see these girls and note their characteristics, their physical appearance, and those qualities and characteristics that go to make up the type of young woman—those things that make us instinctively feel that they are responsible persons and make so many persons even now refuse to believe that such can be feeble-minded, and yet here are the tests. And more than that, here is the test of life—they are unable to adjust themselves to their environment and will always be unable.

Perhaps the reader may be inclined to say, “But these tests show that they are ignorant and that it is because they have not been to school, or have not profited by their school experience.” But such is not the case. These are not tests of school training; they are tests of mental development. Any person who has lived in any sort of average environment for the requisite number of years is able to do these tests, even though he has never been to school, even for a day, and by failing in these they manifest their mental defectiveness.

It begins to look as though we have been attempting to solve the problem of the wayward girl by beginning at the wrong end. We have assumed that she was competent and responsible—that she was able to do differently, if she would, and we have tried by various forms of punishment to reform her. Apparently we have been grossly in error, and it is a fundamental mistake we have made. We should have begun by finding out in early age whether this child had normal mental capacity or not and, if not, we should have taken the case in hand and provided for her such environment as would have fitted her mental condition. The past is gone, the mistakes cannot be rectified; but, if we are wise, from now on we will proceed in accordance with what we are finding out about this class of persons. Instead of enlarging our reformatories we will establish colonies and schools, where these girls can be taken, as early as we can detect them, cared for and trained to do the things they can be trained to do; where they will be made happy and allowed to live a happy and measureably useful life under the care, guidance and direction of intelligent and humane people, who will make their lives happy and partially useful, but who will insist upon the one

important thing, and that is that this race should end with them; they shall never become the mothers of children who are like themselves.

THANKSGIVING IN THE CABIN

BY AUBURN, (N. Y.) No. 29118

1

De winter's come, an' de darkies shiver;
 (Whoo-whoo, how de wind do blow!)
De trees, dey's moanin' in de dark down by de river;
 (Whoo-whoo, how de wind do blow!)
We gadder in de cabin, an' we shet de door,
Throw a log on de fi-ah, fo' to see hit roar,
An' ole King Frost, he growl so fierce an' sore.
 (Whoo-whoo, how de wind do blow!)

2

De old norf wind again de cabin door crashes;
 (Whoo-whoo, how de wind do blow!)
Possum's in de pot, and de sweet yam's in de ashes;
 (Whoo-whoo, how de wind do blow!)
Flitch o' bacon in de pan—lawdy, hear it frying.
Hain't no sorter music dat's near so satisfyin';
Corn pone am hot an' brown—pickininnies sighin'.
 (Whoo-whoo, how de wind do blow!)

3

Ev'rybody gadder 'round de supper table;
 (Whoo-whoo, how de wind do blow!)
Ev'rybody eats des as much, as much as dey is able;
 (Whoo-whoo, how de wind do blow!)
Lil' yaller dawg, he snug down by de fi-ah,
Chewin' all de possum bones dat he could desi-ah;
Seems des like we all is full o' happiness enti-ah.
 (Whoo-whoo, how de wind do blow!)

4

Supper table's cl'ared away; pap he gits his fiddle;
 (Whoo-whoo, how de wind do blow!)
Ev'rybody dances—up and down de middle.
 (Whoo-whoo, how de wind do blow!)
When de reel am finished, den pappy plays a break-down;
Rufe he double-shuffles till you'd fink de roof would shake-down;
Then we pass de cider jug, and mammy brings the cake roun'.
 (Whoo-whoo, how de wind do blow!)

5

Ev'ry darkey suttinly feels happy 'round Thanksgivin';
Lawdy, yes, dey's scrumptiously glad dat dey is livin'.
Sorrer takes a day of—this hain't no time for woe—
And hit makes no diff'runce how de wind do blow.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

A Prison Philosopher.—Number 6203 in the Oregon state penitentiary sees things thus:

Men are like cigars. Often you cannot tell by the wrapper what the filler is. Sometimes a good old stogie is more popular than an imported celebrity. Some men are all right in the show-case on display, but are great disappointments when you get them home. No matter how fine a man is, eventually he meets his match. A “two-fer” often puts on as many airs as a fifty-center. Some men never get to the front at all except in campaigns. Some are very fancy outside and are selected for presents. Others have a rough exterior, but spread cheer and comfort all about them because of what is inside. But all men, as all cigars, good or bad, two-fers, stogies, rich or poor, come to ashes at last.

Sterilization in New Jersey.—Governor Wilson has announced the members of the commission provided for in the sterilization bill passed at the last session of the legislature. The bill stipulates that George O. Osborne, head keeper of the New Jersey state prison; Dr. Frank Moore, superintendent of the Rahway reformatory, and Dr. George B. Wight, commissioner of charities and corrections, shall be members of the commission ex-officio. The Governor has named Dr. Henry D. Costill, of Trenton, and Dr. Alexander Marcy, jr., of Burlington, as the two other members. Dr. Costill’s term is for three years and Dr. Marcy’s for five years.

The bill provides for the sterilization of such criminally insane persons and defectives as in the judgment of the commission it would be wise to treat thus.

Big Brothers Show Results.—The big brothers movement in New York has been given a 230-acre farm in the suburbs of Trenton, N. J., and \$4,000 cash from two anonymous persons.

In the last year 2,195 boys, nearly all of whom had appeared in children's court, came under the influence of the big brothers; of this number only ninety had to be brought a second time before the court. Of the total, 1,208 boys were cared for by the movement in 1910; 840 more were arraigned in children's court this year on various charges; 117 came from institutions, and 1,202 applied at the office for advice or to seek employment.

All for whom places were obtained proved efficient. Permanent homes outside the city were obtained for thirty-seven, and but one could not withstand the lure of the city and moving picture shows, and returned.

Making Prisoners Useful.—At the federal aid good roads convention of the American automobile association in Washington on January 16 and 17, 1912, a session will be devoted to the question of the utilization of prisoners in road building; speakers will be heard from the national committee on prison labor and the American federation of labor.

To increase the output of the state nurseries of New York to 12,000,000 trees per year, the state conservation commission will establish a nursery at the Great Meadows prison at Comstock.

A class in road building, composed of more than 200 long term convicts, has been formed at the Kansas penitentiary at Lansing, and this fall and winter they will learn the fine points of highway construction and building boulevards around the prison. Next spring it is hoped to have a gang of at least 250 men, all experts, who will be put to work on the river boulevard which is to connect Leavenworth and Kansas City.

Warden John E. Hoyle, of the California state penitentiary, is planning to manufacture safes by skilled workmen serving sentences for bank robberies and safe blowing. In trying out the plan he has secured admirable results, as proof of which he displays a vault in his office which was reconstructed from worn out articles by prisoners under sentence of 10 years' imprisonment for robbing a safe. A man who is a skilled mechanic will take charge of that division of the machine shop where the manufacture of safes will be carried on.

Trouble in Ireland.—A strange fault has been found with Irish jails. The general prisons board reports that the institutions have become so comfortable and attractive that short sentences, far from having a reformatory effect, seem to prompt the person once in prison to get back to the domicile as soon as he can. These short sentence prisoners are not in long enough to receive the value of any real reform and are out just long enough to keep themselves confirmed in their vicious habits. So it happens that the board has recommended longer sentences for two reasons, one that some real reform may be inculcated and the other that jail may be made so tedious that culprits will be less ready to seek the institution as a haven of snug refuge and ease for a time.

The board makes the recommendation that prisoners of education be given instruction and a chance to study and that others be taught such things as will tend to increase their usefulness and earning capacity in the world. A plan is also recommended whereby superintendents of prisons shall keep in communication with employers to the end that when prisoners are discharged they may be given work as soon as possible.

An Excellent Editorial.—Score one for the Boston (Mass.) Transcript, which says:

“There may have been valid reasons for pardoning a man who has served four years in our state prison for forging checks and since then has been in the Springfield jail for another offense, but it is hardly treating our neighbors well that one of the conditions of his pardon is that he shall leave the state. If he is entitled to pardon at all he is entitled to a chance to prove

that he is worthy of it in the jurisdiction where his offenses were committed. It looks too much like passing our burdens on to others. We have criticised the Italian government on the alleged charge that, instead of being at the expense and trouble of punishing its own criminals it has frequently connived at their emigration to this country. There is ethically not much difference between that and our own practices. Every state should be responsible for its own offenders. We do not want the ‘undesirable citizens’ from other countries or commonwealths passed upon us and doubtless other states feel the same way about it.”

“Easy Money.”—Attention has been called by a Boston newspaper to the vitality which the so-called “Spanish prisoner” swindle exhibits, despite the repeated exposures to which the game has been subjected, by the press of the country. Communities in New England, equally with other sections of the country, continue to report the receipt of fake appeals, along with the extravagant promises of rewards if money is sent on, by which the languishing prisoner may be released from prison, and thus enabled to enter upon possession of his gigantic fortune. The appeals, it is easy to perceive, would not be sent to individuals where the swindle has been laid bare, time and again, if out of the batch of people thus addressed, gullibles were not found in number sufficient to render the game a profitable one to the swindlers.

How Many Prisoners Are Innocent?—In a report read at the Omaha annual meeting of the American prison association, Frank L. Randall, chairman of the committee on reformatory work and parole, reported that the committee devoted an entire year to its search for a case of capital punishment wherein there was a reasonable doubt as to the guilt of the victim, and so far has discovered not a single definite case of the kind. This search was carried on in every prison in the United States and in Canada, a personal letter having been written to the warden of every state prison in both countries, and each official was asked the following questions:

1. Have you personal knowledge of the execution of any person, on conviction of murder, whom you believe, from subsequent developments, to have been innocent?

2. Have you personal knowledge of the imprisonment, on conviction of heinous crime, of any person whom you believe, from subsequent developments, to have been innocent?

3. If either of the last two questions is answered in the affirmative, was the victim a worthy person?

To the first question every warden in the United States and Canada answered “No” unequivocally, with the exception of R. W. McClaughry, warden of the government prison at Fort Leavenworth, Kansas. Colonel McClaughry was not sure, but said: “I know of one or two who may, in my opinion, have been executed wrongly.”

Warden Fogarty, of the Indiana state prison, wrote: “I have no knowledge, personally, of the execution of an innocent person; however, I have no doubt whatever that some innocent men have been executed.”

To the second question, however, a number of prison officials answered “Yes,” qualifying their statements by answering question No. 3 with a negative answer. For instance, Warden McClaughry, of the government prison, answered, “Yes, a very few,” adding, “In no case could the party have been called worthy.”

Warden Alston, of Wyoming, says: “Yes. I am confident that I know of one man in our state who was convicted and sent here who was innocent. But,” adds the warden, in answering No. 3, “he was of a drunken disposition, and had he been a sober man would never even have been suspected or accused.”

Warden Russell, of Marquette, writes: “I don’t think from my experience as a warden of this prison that the courts make many mistakes.” However, Dr. Gilmour, of Toronto, answers question No. 2 “Yes,” and adds as an answer to No. 3: “Most worthy, and results sadder than sad.” Superintendent C. C. McClaughry, of Boonville, Mo., answers “Yes” to both No. 2 and No. 3.

Warden Fuller, of Ionia, Mich., writes: “During the seventeen years I have been warden I know of only one case of wrongful conviction for offences against property. One prisoner was sent here for stealing a cow, and another prisoner afterward confessed that he had committed the crime

charged against the other man, in order to get rid of the man with whose wife he was infatuated.”

Warden Fogarty, of Indiana state prison, writes: “I have not been convinced by subsequent development that any man convicted and sentenced here for a heinous crime is innocent.”

The case from the western penitentiary, Pittsburgh, wherein a prisoner who served fifteen years was pardoned, was pensioned by Carnegie and heralded as innocent, is treated in the following report: “Your committee had previously taken pains to write to the warden of the prison mentioned, but the information elicited did not indicate that the prisoner had been declared innocent, but was to the effect that the man had been discharged in the usual way—on recommendation—some doubt having been raised.”

The writer of the report says: “The writer has for some years made it a practice to follow up the correspondence or otherwise the most widely published and sensational accounts of hardships experienced by innocent persons under judicial conviction, and has been surprised at the meagre ground upon which such reports rest, though he finds that they are quite generally credited by the reading public.

“Perhaps his (the secretary’s) report may tend to establish confidence in the courts on the part of those who are not informed and who have neither the means nor the time, even if they have the inclination, to inform themselves, and it might be a good beginning in the effort on the part of the institutions to be understood by the public.”

Annual Conference of New York Magistrates.—A number of important problems before the judges of police courts and children’s courts will be discussed and acted upon at the third annual state conference of magistrates, which will meet in Albany on December 8 and 9.

One of the principal subjects to be discussed relates to the need of a state reformatory for male misdemeanants between 16 and 21 years of age. Courts outside of New York city have no suitable institutions to which to commit offenders of this class. A special feature of the conference will be a stereopticon lecture on the detection and treatment of defendants who are mentally defective, by Dr. George M. Parker, psychiatric examiner for the

New York prison association. Dr. Parker has lately examined large numbers of prisoners in the Tombs in New York city and has found that a large proportion are feeble minded or otherwise defective.

Other important subjects will refer to the necessity of public prosecutors in police courts, weaknesses in the present methods of securing and using court interpreters and the treatment of boys and youths convicted of illegal train riding, trespassing on railroad property and stealing from the railroads.

Transcriber's Notes

Page [2](#): “universally condemed” changed to “universally condemned”

Page [3](#): “This sysem” changed to “This system”

Page [6](#): “state instituions” changed to “state institutions”

Page [7](#): “in he colonies” changed to “in the colonies” “refomative agencies” changed to “reformative agencies”

Page [8](#): “At Merrplas” changed to “At Merxplas”

Page [9](#): “attactive buildings” changed to “attractive buildings”

Page [10](#): “exceedinly dangerous” changed to “exceedingly dangerous”

Page [15](#): “been inocent?” changed to “been innocent?”

Page [16](#): “railroad propery” changed to “railroad property”

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